

FORMAL ADA/PROWAG CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

East Second Street Pedestrian Access Barrier — Rogers-Binford Elementary School Corridor

Submitted to: Michael Shermis, ADA Coordinator / Human Rights Commission Director

City: City of Bloomington, Indiana

Date: March 27, 2026

Re: ADA / PROWAG Non-Compliance — Inaccessible Pedestrian Route, East Second Street between Eagleson Drive and High Street; No Accessible Route to Rogers-Binford Elementary School

1. Introduction and Overview

This document constitutes a formal civil rights grievance filed pursuant to Title II of the Americans with Disabilities Act of 1990 (42 U.S.C. § 12131 et seq.), Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 794), and the Public Rights-of-Way Accessibility Guidelines (PROWAG), Final Rule, 36 CFR Part 1190, effective October 7, 2023. The complaint concerns the City of Bloomington's failure to provide a continuous accessible pedestrian route on East Second Street between Eagleson Drive and High Street, leaving persons who use wheelchairs and other mobility devices without any usable path of travel on this block.

East Second Street is a major east-west roadway in Bloomington. Second Street and its extension, Bloomfield Road, runs over four miles from its eastern terminus at College Mall to Interstate I-69 to the west. There is no cross street in its path that has priority over it; that is, if Second Street has a stop sign or traffic light, the cross street also has traffic control. The closest comparable uninterrupted east-west corridors are 17th Street one mile to the north and Tapp Road/Rogers Road 1.5 miles to the south.

On the north side of the street, between the S. Anita Street and S. High Street intersections, the paved sidewalk is interrupted by a stretch of loose gravel and unpaved dirt that is impassable for wheelchair users and persons using mobility aids. There is no sidewalk on the south side of East Second Street at this location. No accessible pedestrian route therefore exists on either side of the street at this block.

One block to the east sits Rogers-Binford Elementary School. Students, parents, guardians, and staff members with mobility disabilities who approach the school from the west along East Second Street cannot do so safely or independently. The only plausible alternative — S. Clifton Avenue south to East First Street, then east to the school — is itself inaccessible: S. Clifton Avenue is a residential street with no sidewalks. The barrier on East Second Street therefore constitutes a complete denial of an accessible pedestrian route to a public elementary school.

The primary legal basis for this complaint is the City's ongoing and unconditional obligation under 28 C.F.R. § 35.150 to operate its pedestrian program in a manner that is accessible to persons with disabilities. That obligation has been in effect since 1992 and does not require a recent alteration to arise.

Independently, the City installed new PROWAG-compliant curb ramps at the S. Anita Street and S. High Street intersections sometime after September 2017, as part of a corridor-level ramp replacement program documented in Section 2.3. Those installations, made under PROWAG after the City formally adopted it in 2011, confirm the City's knowledge of applicable accessibility standards, its technical capacity to perform this work, and its deliberate choice to leave the connecting sidewalk impassable. A ramp installed under PROWAG that connects only to an unpaved, impassable surface does not satisfy the connectivity requirement of PROWAG R202.2 and cannot constitute the beginning of an accessible route under R204.2.

1.1 Corridor Usage and Priority

Traffic count data from the City of Bloomington's B Clear Open Data repository documents the following two-way average daily traffic volumes at points along this corridor:

Year	Daily Traffic Count	Location
1997	4,829	S Rose Ave to S Anita
1999	3,167	East of S Ballantine Rd
2012	4,720	S Rose Ave
2015	3,331	S Swain Ave to S Mitchell
2016	4,059	S Arbutus Dr to S Rose Ave

Source: City of Bloomington B Clear Open Data (data.bloomington.in.gov), as compiled by The B Square Bulletin, May 31, 2023.

These traffic counts significantly understate the transportation significance of the corridor: they measure vehicle traffic only. Parents, guardians, and students at Rogers-Binford Elementary School would, if the corridor were safe and accessible, form a large user base. This location cannot be treated as a low-priority location for accessibility compliance.

1.2 The City's Own Commitments

The City of Bloomington has publicly committed to pedestrian accessibility. The City's 2018 Comprehensive Plan Goal 6.3 states:

"Improve the Bicycle and Pedestrian Network: Maintain, improve, and expand an accessible, safe, and efficient network for pedestrians, and attain platinum status as a Bicycle Friendly Community, as rated by the League of American Bicyclists."

In 2022, with assistance from Bloomberg Philanthropies, the City undertook an 'Innovating Sidewalk Maintenance' initiative that asked: "how we might create systems that will ensure that all sidewalks are always navigable by everyone throughout the city?" This is an acknowledgment of the City's understanding that the current state of its pedestrian network excludes people with disabilities.

Despite these commitments, the conditions documented in this complaint have existed for all to see for more than thirty years. The gap between the City's stated accessibility goals and the conditions on East Second Street is the subject of this grievance.

2. Applicable Regulatory Framework

2.1 Title II of the ADA — Program Accessibility (28 C.F.R. § 35.150) — Primary Basis

The primary regulatory basis for this complaint is the program accessibility standard. Under 28 C.F.R. § 35.150(a), a public entity shall operate each service, program, or activity so that the service, program, or activity, when viewed in its entirety, is readily accessible to and usable by individuals with disabilities. This obligation is unconditional: it does not depend on the occurrence of any construction or alteration event. It requires the City, as an ongoing matter, to ensure that its pedestrian infrastructure — considered as a program — does not exclude or deny participation to persons with disabilities. The City's obligation under § 35.150 arose on January 26, 1992 and has remained in continuous effect.

Where a specific facility is the only means of accessing a program, the facility-level inaccessibility becomes a program-level denial. The City cannot discharge its obligation by pointing to alternative routes that are themselves inaccessible. The only plausible alternative to East Second Street — S. Clifton Avenue to East First Street — has no sidewalk on S. Clifton Avenue, rendering it equally unusable by wheelchair users. No accessible pedestrian route to Rogers-Binford Elementary School therefore exists from the west.

2.2 Transition Plan Obligations (28 C.F.R. § 35.150(d))

Public entities with more than 50 employees were required to develop a transition plan by July 26, 1992, identifying structural changes necessary to achieve program accessibility and establishing a schedule for their completion. The mere existence of a transition plan is not sufficient; under 28 C.F.R. § 35.150(d)(3), such a plan must specify a schedule for taking the steps necessary to achieve compliance. The implications of this requirement are addressed in Section 5.4.

The City of Bloomington was required to have identified the East Second Street barrier in its transition plan no later than 1992. The complainant is unaware of any publicly available transition plan entry addressing this location. The City is asked to produce any such documentation. If none exists, that failure is itself a regulatory violation independent of the underlying physical deficiency.

2.3 The Corridor-Level Ramp Replacement Program

The City may assert that the ramp installations at Anita and High Streets were discrete, isolated improvements that imposed no obligation to address the connecting sidewalk. The evidence contradicts this defense.

On July 28, 2022, the City of Bloomington issued a public announcement stating:

"The sidewalk crews completed the installation of ADA-compliant curb ramps on N Jefferson Street from E 3rd to E 10th. Next week, crews will continue with ADA-compliant ramp installation on E 2nd Street from S High Street to S Swain Avenue to prepare for resurfacing."

This announcement is significant for several reasons:

- The ramp work on E. 2nd Street was part of a corridor-level installation program, not isolated repairs.
- The work was explicitly undertaken "to prepare for resurfacing" — establishing that it was part of a broader alteration project on this corridor.
- The work extended from High Street westward (toward Anita and beyond), encompassing the gap documented in this complaint.
- The City's contractors passed through or alongside the gravel gap on this corridor during the ramp installation work.

The DOJ/DOT 2015 Supplement to the Joint Technical Assistance on Curb Ramps explicitly warns:

"Public entities should not structure the scope of work to avoid ADA obligations to provide curb ramps when resurfacing a roadway."

And further:

"In some cases, the combination of several maintenance treatments occurring at or near the same time may qualify as an alteration and would trigger the obligation to provide curb ramps."

When a city undertakes systematic ramp replacement along a corridor in preparation for resurfacing, it cannot later claim each ramp was an 'isolated' improvement exempt from path-of-travel obligations. The ramps at Anita and High Streets were elements of a corridor-level project. The failure to address the connecting sidewalk was a deliberate choice made during that project, not an oversight concerning unrelated infrastructure.

2.4 Federal PROWAG Final Rule (2023)

Relevant technical standards include:

- **R204.2 (Pedestrian Access Routes — Sidewalks):** A pedestrian access route shall be provided within sidewalks and other pedestrian circulation paths located in the public right-of-way.
- **R202.2 (Added Elements — Connection Requirement):** Where pedestrian facilities are altered, they shall be connected by a pedestrian access route complying with R302 to an existing pedestrian circulation path.

- **R302.3 (Continuous Width):** The continuous clear width of pedestrian access routes shall be 1.2 m (4.0 ft) minimum.
- **R302.7 (Surfaces):** Surfaces of pedestrian access routes shall be firm, stable, and slip resistant.
- **R302.7.2 (Vertical Surface Discontinuities):** Vertical surface discontinuities shall be 13 mm (0.5 in) maximum.
- **R202.3.3 (Reduction in Access Prohibited):** An alteration shall not decrease or have the effect of decreasing the accessibility of a facility below the requirements for new construction in effect at the time of the alteration.

2.5 Indiana Department of Transportation (INDOT) Standards

While INDOT's Field Inspection and Engineering (GIFE) Section 22 (Rev. 09-01-24) applies directly to state-funded transportation projects, its guidance on ADA compliance principles is instructive. INDOT explicitly states that "'Doing the best you can' is not sufficient for ADA compliance" (Section 22.1.1, page 22-1). Exceptions to ADA requirements require "a determination of technical infeasibility, issued by the Highway Engineering Division in conjunction with the Department's Title VI Program and FHWA," and "the intent is that technical infeasibility is determined prior to construction" (Section 22.1.1, page 22-1). These principles apply to all ADA-covered pedestrian infrastructure, regardless of funding source. The complainant is unaware of any technical infeasibility determination for this location.

2.6 City of Bloomington PROWAG Adoption (2011)

The Bloomington Board of Public Works formally adopted PROWAG by Resolution 2011-99 on September 27, 2011. The substantive technical requirements for pedestrian access route width, surface quality, and continuity were present in the 2011 proposed guidelines and are carried forward into the 2023 Final Rule. Because both ramp installations occurred after 2011, the City cannot credibly claim these standards were unknown or unexpected when it undertook the work.

2.7 Section 504 of the Rehabilitation Act of 1973

Section 504, 29 U.S.C. § 794, independently prohibits discrimination on the basis of disability in programs receiving federal financial assistance. Rogers-Binford Elementary School, as a public school receiving federal funds, is itself subject to Section 504. The City's failure to provide an accessible pedestrian route to this school denies access to a federally-assisted program on the basis of disability — a distinct violation independent of any Title II claim.

The Supreme Court observed in *Alexander v. Choate* (1985) that "Discrimination against the handicapped was perceived by Congress to be most often the product, not of invidious animus, but rather of thoughtlessness and indifference — of benign neglect." The conditions documented in this complaint are precisely the 'benign neglect' that Section 504 was designed to address.

3. Description of the Barrier and Documented Conditions

3.1 The Inaccessible Gap: North Side of East Second Street between S. Anita Street and S. High Street

On the north side of East Second Street, between the S. Anita Street and S. High Street intersections, the paved sidewalk is interrupted by a stretch of loose gravel and unpaved dirt. As documented in Fig. 1 below, the surface is neither firm, stable, nor slip resistant within the meaning of PROWAG R302.7. There is no sidewalk on the south side of East Second Street at this location. The result is that no pedestrian access route of any kind exists for this segment of East Second Street.



Fig. 1: Eastward view along East Second Street from approximately 1998 E. 2nd St., Bloomington, Indiana (Google Street View, July 2023). The north-side sidewalk gives way to gravel and unpaved surface. There is no sidewalk on the south side at this location. Rogers-Binford Elementary School is one block to the east.

3.2 City Bicycle Infrastructure at the Gap Location

The City has not neglected this location entirely. As documented in Fig. 2 below, the City has installed official bicycle wayfinding signage at this exact location, designating it as part of the "Clifton / Union Greenway." The sign provides distance markers to IU Campus (0.3 miles) and College Mall (0.7 miles), confirming that the City considers this location part of its active transportation network.

This evidence is significant for several reasons:

- **Demonstrates awareness:** The City knew this location well enough to designate it as part of a named greenway network. It cannot credibly claim ignorance of the gap.
- **Undermines 'undue burden' defense:** The City had resources to plan, design, fabricate, and install greenway wayfinding signage at this exact location. The claim that constructing a sidewalk segment would constitute an undue financial burden is difficult to reconcile with the investment already made in bicycle infrastructure here.
- **Establishes unequal service:** The City actively provides and promotes transportation infrastructure for cyclists at this location while denying equivalent infrastructure for pedestrians with disabilities. This contrast implicates 28 C.F.R. § 35.130(b)(1)(ii) (unequal service) and 28 C.F.R. § 35.130(b)(4) (methods of administration that have a discriminatory effect).

- **Establishes this as a City project, not an oversight:** The greenway sign identifies this location as part of a named City corridor project. The failure to provide an accessible pedestrian route is not an isolated oversight but a deliberate investment decision that excluded accessibility.

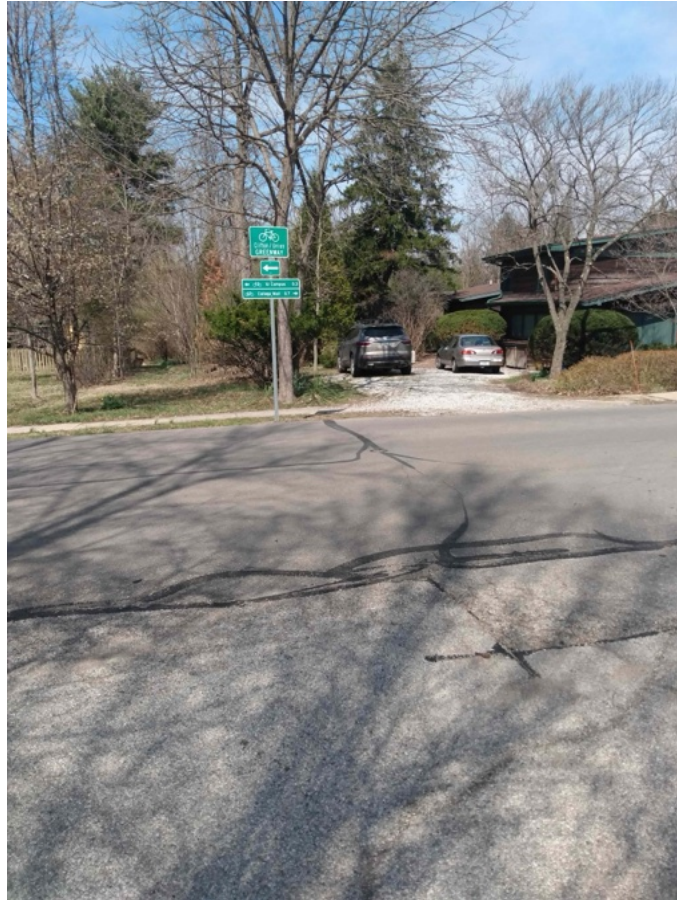


Fig. 2: City-installed "Clifton / Union Greenway" bicycle wayfinding sign at the gap location on East Second Street (complainant's photograph, March 2026). The sign provides distance markers to IU Campus (0.3 miles, left arrow) and College Mall (0.7 miles, right arrow). The gravel gap where the sidewalk should be is visible in the background. The City has invested in bicycle infrastructure at this exact location while leaving the pedestrian route impassable.

3.3 The Ramp Installations: Before and After

The before-and-after photographs below document the curb ramp installations at the two intersections bracketing the barrier. Google Street View imagery from September 2017 confirms that neither ramp existed at that date. Current photographs confirm that both ramps are now present and include detectable warning surfaces consistent with PROWAG requirements. The installations therefore occurred sometime after September 2017 — after the City formally adopted PROWAG in September 2011.

The September 2017 imagery is particularly significant because it documents that the City was aware of conditions on this corridor at that date, including the deteriorated and overgrown sidewalk visible in Fig. 4a at the High Street approach. The decision to install compliant ramps at each intersection while leaving the connecting sidewalk unaddressed was made in full knowledge of the gap.

S. Anita Street Intersection

Before (Sep. 2017)



Current



Fig. 3a (left): East Second Street approaching S. Anita Street intersection, north side (Google Street View, September 2017). No detectable warning surface or upgraded curb ramp is present. Fig. 3b (right): S. Anita Street intersection, north side of East Second Street, current condition. A new curb ramp with detectable warning surface has been installed. The ramp leads directly toward the unpaved gap documented in Fig. 1, providing no continuous accessible route.

S. High Street Intersection

Before (Sep. 2017)



Current



Fig. 4a (left): East Second Street at S. High Street intersection, north side (Google Street View, September 2017). No detectable warning surface or upgraded curb ramp is present. The deteriorated and overgrown condition of the sidewalk approach is clearly visible. Fig. 4b (right): S. High Street intersection, north side of East Second Street, current condition. A new curb ramp with detectable warning surface has been installed. A utility pole is positioned within the ramp approach area. The ramp connects to the sidewalk that leads to the unpaved gap, providing no continuous accessible route.

3.4 The Inaccessible Alternative: S. Clifton Avenue

The only plausible pedestrian alternative for a wheelchair user blocked by the East Second Street gap is to turn south on S. Clifton Avenue, travel to East First Street, and then proceed east to Rogers-Binford Elementary School. S. Clifton Avenue is a residential street with no sidewalks on either side. A wheelchair user directed to this alternative would be required to travel in the street on both S. Clifton Avenue and, depending on conditions, portions of East First Street. This is not an equivalent alternative within the meaning of 28 C.F.R. § 35.150. An alternative route that itself lacks an accessible pedestrian path cannot satisfy the program accessibility obligation.

3.5 Proximity to Rogers-Binford Elementary School

Rogers-Binford Elementary School is located one block east of the barrier, on East Second Street. Students, parents, guardians, and staff with mobility disabilities who approach from the west are denied a safe and independent route to the school.

The failure to provide an accessible pedestrian route to a federally-funded public elementary school is not merely an infrastructure deficiency — it is an ongoing civil rights violation affecting children with disabilities. Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, states that 'no otherwise qualified individual with a disability... shall, solely by reason of her or his disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination' under any program receiving federal assistance. A child who uses a wheelchair and cannot safely reach school because the City has not provided an accessible route is being 'excluded from participation' in public education.

Both the DOJ and the U.S. Department of Education have recognized the obligation to ensure accessible routes to public schools as a foundational element of civil rights compliance.

3.6 Duration of the Violation

The unpaved condition of the north-side sidewalk is confirmed by Google Street View imagery from July 2023 and by the complainant's direct observations as of the date of this complaint. The Google Street View imagery from September 2017 confirms the gap predates the ramp installations at both intersections and that the City performed subsequent accessibility work on this corridor while the gap remained unaddressed. The ADA's program accessibility obligations have been in effect since January 26, 1992. The City adopted PROWAG in 2011. The continued existence of this barrier is evidence of a compliance program that has subordinated pedestrian route continuity to other priorities for more than three decades.

4. Regulatory Violations

The conditions described in Section 3 constitute violations of the following:

- **28 C.F.R. § 35.150(a)** — Failure to operate the City's pedestrian program so that it is readily accessible to and usable by individuals with disabilities. This is the primary and independently sufficient basis for this complaint.
- **28 C.F.R. § 35.150(d)** — Failure to identify and schedule for correction a structural accessibility barrier as required by the transition plan obligation in effect since 1992.

- **28 C.F.R. § 35.130(b)(1)(ii)** — Providing a person with a disability a service that is not equal to that afforded to persons without disabilities. As documented in Section 3.2, the City provides bicycle wayfinding infrastructure at this location while denying an accessible pedestrian route.
- **28 C.F.R. § 35.130(b)(4)** — Utilizing criteria or methods of administration that have the effect of subjecting qualified individuals with disabilities to discrimination. The City's systematic prioritization of bicycle infrastructure over pedestrian accessibility — evidenced by the greenway signage installed at the exact location where an accessible pedestrian route is absent — constitutes a method of administration with discriminatory effect.
- **PROWAG R302.7** — Surface not firm, stable, or slip resistant (loose gravel and unpaved dirt).
- **PROWAG R204.2** — No pedestrian access route provided within the sidewalk on either side of East Second Street at this location.
- **PROWAG R202.2** — The curb ramp installations at S. Anita Street and S. High Street, made under PROWAG, do not satisfy the connection requirement: each ramp connects to a pedestrian circulation path that is impassable rather than to a compliant pedestrian access route.
- **PROWAG R202.3.3** — The ramp installations, as executed, do not ensure a continuous accessible connection on the path of travel they were designed to serve.
- **Section 504 of the Rehabilitation Act, 29 U.S.C. § 794** — Denial of access to a federally-assisted program (public elementary school) on the basis of disability.

5. The City's Anticipated Defenses and Why They Fail

5.1 "The Ramp Installations Did Not Require Sidewalk Upgrades"

The City may assert that the ramp installations at Anita and High Streets were discrete improvements that imposed no obligation to address the connecting sidewalk. The complainant acknowledges that PROWAG R202.1 provides that where elements are altered and the adjacent pedestrian circulation path is not itself altered, the path is not required to be upgraded solely by reason of that alteration. The complainant does not assert the contrary.

What the complainant does assert is this: first, the evidence in Section 2.3 demonstrates that the ramp installations were part of a corridor-level project, not isolated repairs. The City's own July 2022 announcement describes the work as 'ADA-compliant ramp installation on E 2nd Street from S High Street to S Swain Avenue to prepare for resurfacing.' A corridor-level alteration project cannot be disaggregated into isolated ramp installations to avoid path-of-travel obligations.

Second, a ramp installed under PROWAG that connects only to an impassable surface does not satisfy PROWAG R202.2's requirement that altered facilities be connected to an existing pedestrian circulation path by a compliant pedestrian access route. The ramp installations as executed are therefore incomplete and non-conforming under the standard the City invoked when performing them.

Third, the ramp installations and the gap are relevant not as independent triggers of a sidewalk upgrade obligation but as evidence that the City has been aware of this corridor, aware of the applicable standards, and has repeatedly chosen not to address the barrier. That evidence goes directly to the § 35.150 program accessibility obligation, which has existed independently since 1992 and does not require a recent alteration to apply.

5.2 "The Program Accessibility Obligation Does Not Apply"

There is no credible basis for this defense. The § 35.150 program accessibility obligation is not contingent on any alteration event. It arose in 1992, applies to the City's pedestrian network as a program, and requires the City to ensure that persons with disabilities are not excluded from or denied the benefits of that program. The complete absence of any accessible pedestrian route on a public street, one block from an elementary school, for more than three decades is a direct and sustained violation of that obligation.

5.3 "Persons with Disabilities Can Use an Alternative Route"

The City may point to S. Clifton Avenue as an alternative route. As documented in Section 3.4, S. Clifton Avenue has no sidewalks. Directing wheelchair users to a route that requires travel in the street does not constitute an accessible alternative within the meaning of 28 C.F.R. § 35.150. An adequate alternative must be equally convenient, equally safe, and itself accessible. The Clifton/First Street detour is none of these things.

5.4 "This Location Is Part of an Active or Planned Project"

The City may respond that the East Second Street sidewalk gap has been identified for correction and is part of an ongoing or planned infrastructure project. The complainant anticipates this response and addresses it directly.

Inclusion in a project queue or capital improvement plan does not constitute compliance with 28 C.F.R. § 35.150. The ADA does not permit a public entity to defer correction of a civil rights violation indefinitely on the grounds that it intends to correct it at some future point. The transition plan obligation — which required a binding schedule for all necessary structural changes by 1992 — was designed precisely to prevent this outcome. A barrier that has been outstanding for more than thirty years cannot be excused by reference to plans that have not yet produced results.

Moreover, the photographic evidence documents that the City was actively performing ramp work on this corridor as recently as 2017–2022, and chose on each occasion not to address the connecting sidewalk. The existence of a current project plan does not retroactively cure those prior decisions, nor does it constitute the specific, verifiable commitment this complaint requires.

An adequate response to this complaint must include, at minimum:

- A specific, identified funding source and appropriated budget for the East Second Street sidewalk repair;
- A binding construction start date and completion date, not a range or an estimate;
- Identification of the contractor or public works crew assigned to the work, or a commitment to issue a bid by a stated date;
- A written commitment that the repair will comply in full with PROWAG Final Rule (2023) standards, including minimum 4.0 ft continuous clear width, firm and stable surface, and compliant transitions;
- A point of contact and a mechanism by which the complainant can verify that work has been completed as committed.

A response that states only that the location is 'on the list,' 'under review,' or 'part of a planned project' without these specifics does not constitute a substantive response to a civil rights complaint. A civil rights obligation that has been in effect for more than thirty years cannot be satisfied by a commitment to address it at some unspecified future date. The complainant will treat such a response as a deferral and will proceed to escalation accordingly.

5.5 "The City Lacks Resources to Address This Deficiency"

Under 28 C.F.R. § 35.150(a)(3), a public entity may claim that an action would result in an 'undue financial and administrative burden.' However, this defense is unavailable to the City in light of its current resource allocation decisions.

The photographic evidence in Section 3.2 directly undermines any 'undue burden' defense. The City had sufficient resources to plan, design, fabricate, and install official greenway wayfinding signage at this exact location. If the City can invest in bicycle infrastructure here, it cannot credibly claim that constructing a sidewalk segment — a more fundamental accessibility requirement — would constitute an undue financial burden.

The City is currently advancing a \$1.5 million Indiana Avenue Safety Improvement Project, with construction expected to proceed in 2026–2027. The primary focus of this project is the installation of protected bike lanes from Smith Avenue to 10th Street. The City has the technical capacity, contractor relationships, and appropriated funds to perform this work.

The complainant does not suggest here that bike lane projects are inappropriate or that the City should not invest in multimodal infrastructure. The complainant takes no position here on the compliance status of any specific project other than the one addressed in this complaint. The complainant does observe that the City cannot credibly claim financial hardship when it is simultaneously committing \$1.5 million to a discretionary bike lane project while leaving a fundamental accessibility barrier — one block from an elementary school — unaddressed. The choice to leave the Second Street gap unfilled while advancing the Indiana Avenue project is a policy choice, not a resource constraint.

The same engineering staff and contractors who are designing the Indiana Avenue project could address the Second Street gap. The gap is a fraction of a block. The cost of correction is trivial compared to the City's demonstrated capacity for pedestrian and bicycle infrastructure investment.

6. Pattern of Non-Compliance and Systemic Concern

This complaint is one of a series of formal civil rights grievances being filed with this office regarding accessibility failures in the City's pedestrian network. Each complaint concerns a distinct location and set of facts. Taken together, they describe a pattern in which the City performs targeted accessibility improvements — new curb ramps, detectable warning surfaces — without ensuring that those improvements result in a continuous and usable pedestrian access route. Accessible elements in isolation do not constitute an accessible route under PROWAG R204.2.

A public street with no accessible sidewalk on either side, one block from a public elementary school, is not a marginal or low-priority deficiency. It is emblematic of a compliance program that has not

adequately implemented the transition plan obligation or the program accessibility standard that has been in effect for more than thirty years.

The complainant will monitor whether the remedy for this location is accomplished by deferring other scheduled accessibility improvements, and will treat such deferral as evidence of the pattern described herein.

7. Remedies Requested

Tier 1 — Required Remedies (Non-Negotiable)

Remedy 1A — Immediate Correction of the Gap with Specific Timeline

The City shall construct a compliant pedestrian access route on the north side of East Second Street between the S. Anita Street and S. High Street intersections, with a minimum continuous clear width of 4.0 feet, a firm, stable, and slip-resistant surface, and all required transitions and detectable warning surfaces at intersecting driveways and crossings. The corrected route shall comply in full with PROWAG Final Rule (2023) standards.

The City shall provide the complainant, within 60 days of receiving this complaint, with:

- A specific construction start date (month and year, not a range);
- A specific construction completion date (month and year, not a range);
- Identification of the contractor or City crew assigned to perform the work;
- The identified funding source and appropriated budget;
- A mechanism by which the complainant may verify completion.

Remedy 1B — Production of Transition Plan Documentation

The City shall produce any transition plan entry addressing the East Second Street barrier. If none exists, the City shall acknowledge that omission in writing. If the City does not have a current transition plan meeting the requirements of 28 C.F.R. § 35.150(d), the City shall acknowledge that fact and provide a timeline for developing a compliant plan.

Remedy 1C — Written Acknowledgment

The City shall provide a written response addressing the regulatory violations identified in this complaint. If the City's position is that no violation has occurred, the City shall explain its legal basis for that position in writing.

Tier 2 — Preferred Additional Remedy

The complainant recognizes that the City faces competing demands on limited infrastructure resources, and that the goal of this complaint is to ensure that persons with disabilities can access the pedestrian network. In that spirit, the complainant identifies the following additional remedies as preferred resolutions of the broader access concerns this complaint documents.

Remedy 2A — Full Corridor Accessibility Audit

The City shall conduct a documented accessibility audit of the full length of East Second Street from Eagleson Drive to and including the pedestrian approaches to Rogers-Binford Elementary School, and of S. Clifton Avenue between East Second Street and East First Street. The audit shall evaluate all sidewalks, curb ramps, alley and driveway crossings, drainage conditions, and pedestrian access route continuity and width against PROWAG Final Rule (2023) standards. Results shall be provided to the complainant.

The complainant emphasizes that the Tier 2 remedy is offered as a preferred additional measure, not as a waiver of the Tier 1 remedies. The Tier 1 remedies — correction with specific timeline, transition plan documentation, and written acknowledgment — are non-negotiable.

8. Notice of Intent to Escalate

Should the City fail to provide a substantive response within 60 days of receiving this complaint, or should the response consist of a referral to an online maintenance queue without commitment to address the regulatory violations identified herein, the complainant reserves the right to submit this complaint and the City's response to the Indiana Civil Rights Commission and to the U.S. Department of Justice, Civil Rights Division, Disability Rights Section.

A response directing this civil rights complaint to an online maintenance system would itself constitute significant evidence in any escalation filing: it would demonstrate that the City's process for adjudicating Title II violations is an informal maintenance queue with no defined legal standard, no compliance timeline, and no accountability mechanism. Such a response would be reproduced in full in any escalation filing.

9. Supporting Documents and References

1. U.S. Access Board, Public Rights-of-Way Accessibility Guidelines (PROWAG), Final Rule, 36 CFR Part 1190, published August 8, 2023, effective October 7, 2023 (88 FR 53608).
2. U.S. Access Board, Accessibility Guidelines for Pedestrian Facilities in the Public Right-of-Way, Notice of Proposed Rulemaking, 76 FR 44664 (July 26, 2011), FR Doc. 2011-17721.
3. Indiana Department of Transportation (INDOT), Field Inspection Engineering (GIFE), Section 22: ADA Compliance for Sidewalk, Curb Ramps, Blended Transitions, and Pedestrian Facilities, Rev. 09-01-24.
4. City of Bloomington, Board of Public Works, Resolution 2011-99, September 27, 2011 (PROWAG adoption).
5. City of Bloomington, News Release: 'Southeast Park Improves Accessibility; Businesses Around the Hidden River Construction are Open; and Installation of ADA-Compliant Ramps Continues,' July 28, 2022 (documenting corridor-level ramp installation on E. 2nd Street).
6. U.S. Department of Justice / Department of Transportation, Joint Technical Assistance on Title II ADA Requirements to Provide Curb Ramps when Streets, Roads, or Highways are Altered through Resurfacing (2013).
7. U.S. Department of Justice / Department of Transportation, Questions & Answers: Supplement to the 2013 DOJ/DOT Joint Technical Assistance (2015).

8. U.S. Department of Justice, Title II Technical Assistance Manual (1993) and subsequent guidance on program accessibility and transition plan requirements under 28 C.F.R. § 35.150.
9. City of Bloomington, Traffic Count Data, B Clear Open Data (data.bloomington.in.gov).
10. The B Square Bulletin, 'Honk, if you'd like Bloomington's traffic counts,' May 31, 2023 (compilation of traffic count data).
11. Photographic evidence: Fig. 1, Google Street View capture, 1998 E. 2nd Street, Bloomington, Indiana (July 2023). Fig. 2, complainant's photograph of City-installed Clifton/Union Greenway bicycle wayfinding sign at the gap location, taken March 2026. Figs. 3a and 4a, Google Street View captures at S. Anita Street and S. High Street intersections (September 2017), documenting absence of detectable warning surfaces at those dates. Figs. 3b and 4b, complainant's photographs of current curb ramp installations at S. Anita Street and S. High Street intersections, East Second Street, taken March 2026. All photographs attached hereto.

Respectfully submitted,

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March 27, 2026

This complaint was prepared with the assistance of Claude, an AI assistant developed by Anthropic (claude.ai), and other AI resources.